

GEORGIA BUREAU OF INVESTIGATION
GEORGIA CRIME INFORMATION CENTER
AGENCY INSTRUCTIONS FOR REQUEST TO RESTRICT (EXPUNGE) ARREST RECORD for Arrests Prior to
07/01/2013

1. O.C.G.A. §35-3-37 provides for the restriction of certain criminal history records for non-criminal justice purposes when approved by the prosecuting attorney.
 - For arrests prior to July 1, 2013 the applicant is required to apply for restriction at the arresting agency. Arresting agencies may require a processing fee not to exceed \$50.00 as authorized per §35-3-37.
 - The REQUEST TO RESTRICT ARREST RECORD is a three section (page) form.
 - Section One is completed by the applicant. Each request form may contain only one (1) Date of Arrest (there may be multiple charges for that arrest).
 - Section Two is completed by the arresting agency. The entire form is forwarded to the prosecutor for approval/denial.
 - Section Three is completed by the prosecutor. If approved, the prosecutor may enter the appropriate disposition restriction code using the GCIC CCH User Interface and notify the applicant that the restriction is complete. The arresting agency will receive a notification from GCIC that the record has been restricted. If the prosecutor enters the restriction in the CCH User Interface the application and fee should not be forwarded to GCIC.
 - If the prosecutor does not have access to the CCH User Interface, the application may be returned to the arresting agency.
 - The arresting agency should advise the applicant to forward the approved application to GCIC including the GCIC processing fee. Incomplete applications or those missing the required fee will not be processed and will be returned to the applicant. Do not forward the restriction application to GCIC if the request is denied by the prosecutor.
 - Applicants may send the approved Request to Restrict Arrest Record form and \$25.00 fee (money order or certified check payable to "Georgia Bureau of Investigation") to:

Georgia Crime Information Center Record Restrictions
P.O. Box 370808
Decatur, Georgia 30037-0808

- GCIC will send a letter to the street address listed on Page 1 of the application when the restriction has been applied to the Georgia criminal history.
2. For arrests occurring July 1, 2013 or later, there is no application process. The prosecutor may approve the restriction at the time of sentencing. If restriction is approved upon sentence completion, it should be noted in the sentencing documentation forwarded to the court.
 3. When the restriction has been applied to the Georgia criminal history, access to that specific arrest cycle is restricted for non-criminal justice purposes (Employment/Licensing). However, such information may be available through other sources. GCIC has no control over information provided by local agencies or private vendors.

REQUEST TO RESTRICT ARREST RECORD

Prior to 07/01/2013

O.C.G.A. §35-3-37

One (1) Date of Arrest per Request

SECTION ONE - APPLICANT INFORMATION

(Completed by Applicant)

GBI Use Only

Money Order _____

Certified Check _____

GBI Reference # _____

Name: Alexandria Catherine Montgomery-Williams

Date of Birth: 05/12/1991 Race: Black Sex: Male

Social Security Number: _____

Telephone Number: 404-555-0142 Email: alexandria.montgomery@example.com

Street Address: 1275 Example Boulevard Apartment 1204

City: Peachtree Corners State: GA Zip Code: 30092-1234

Arresting Agency: Gwinnett County Police Department

Date of Arrest: 06/30/2013

Offenses(s) Arrested For: Count 1: Criminal trespass (O.C.G.A. 16-7-21); Count 2: Disorderly conduct

(O.C.G.A. 16-11-39); Count 3: Obstruction of a law enforcement officer, misdemeanor (O.C.G.A.

16-10-24)

Sections One and Two of this form must be completed in their entirety before request may be submitted to the Prosecuting Attorney's Office.

I request the arrest record information (Date of Arrest and associated charges) described above pertaining to me be restricted from the record(s) of the arresting agency pursuant to the provisions of O.C.G.A. §35-3-37.

Signature: _____ Date: _____

SECTION TWO - ARREST INFORMATION

(Completed by Arresting Agency)

Date Request Received: _____

Applicant's State Identification Number (SID): GA _____

Offender Tracking Number (OTN): _____

Arresting Agency Name: _____

Arresting Agency ORI Number: _____

Case / Citation / Docket Number: _____

Date of Arrest: _____

Arrest appears on Georgia and/or FBI criminal history record? ☐ Yes ☐ No

If arrest does not appear on either state or federal record, the record restriction cannot be processed.

Arrest Charge Tracking Number(s) and Charges:

Disposition of Arrest:

Disposition appears on Georgia criminal history record? ☐ Yes ☐ No

If No, attach official documentation containing disposition information. If official documentation is not available, please provide explanation and request for exception in Prosecutor's Comments, e.g., No Further Action Anticipated. (Without a disposition on file, official documentation, or g., No Further Action Anticipated. (Without a disposition on file, official documentation, or request for exception, this request cannot be processed.)

Prosecuting Attorney/Court Case Referred To: _____

Official Completing Form:

Title: _____

Name: _____ Telephone Number: _____

Signature: _____ Email: _____

SECTION THREE – PROSECUTING ATTORNEY

(Completed by Prosecuting Attorney)

Date Request Received: _____

Judicial Circuit / County: _____

Prosecuting Agency ORI Number: _____

District Attorney / Solicitor General: _____

Prosecutor Assigned to Case: _____

Case / Citation / Docket Number: _____

Please select one of the following actions:

_____ Approved - Record Restriction Meets Statutory Requirements

_____ No Information Available; Record Restriction Forwarded Without Objection

_____ Approved - No Further Action Anticipated

_____ No Information Available at Prosecutor's Office; Returned to Arresting Agency for Further Research. **DO NOT FORWARD RESTRICTION FORM TO GCIC.**

_____ Denied - Restriction Does Not Meet Statutory Requirements
DO NOT FORWARD RESTRICTION FORM TO GCIC.

If additional Charges from same Arrest Date, other than those identified on Page 2, are also approved for record restriction, list the Arrest Charge Tracking Number(s) and Charges in Prosecutor Comments.

Prosecutor Comments:

Prosecutor Completing Form:

Name: _____ Telephone Number: _____

Signature: _____ Email: _____

Before you submit

SYNTHETIC EXAMPLE - NOT FOR SUBMISSION

Purpose and packet contents

This is the initial application for an arrest before July 1, 2013. It is not an approval, a court petition, or the procedure for a newer arrest. Keep all four official pages together: instructions; Section One (you); Section Two (arresting agency); Section Three (prosecutor). Only Section One is prepared. These added pages are instructions, not a filing substitute.

Your selected route

All charged offenses dismissed. Arrest date: 06/30/2013. Reported outcome date: 01/15/2014. These are supplied facts for the selected route, not a prosecutor's finding. Compare all charges from this arrest against the actual record before signing. Charges from another arrest date require a separate application.

Complete and check Section One

Review Name, Date of Birth, Race, Sex, Telephone Number, Email, Street Address, City, State, Zip Code, Arresting Agency, Date of Arrest and Offenses(s) Arrested For. Race and sex are only transcribed when supplied, never inferred. Keep the full offense wording. Do not shorten a charge or substitute an outcome for the offense.

Information still needed

Social Security Number: We have left this field blank. Enter your own number privately on the official paper form, not in ordinary email. Ask the agency how to proceed if you have no Social Security Number.

Sign only after checking

Sign and date the applicant's Section One on the day you sign. No signature, signing date, notarial act or digital consent was inserted. This source does not call for notarization. Leave the GBI Use Only box and all of Sections Two and Three untouched, including the repeated arrest, agency and case facts.

Agency submission and charges

SYNTHETIC EXAMPLE - NOT FOR SUBMISSION

Obtain and compare the record

Obtain your own Georgia criminal history through a Georgia sheriff's office or police department. Ask that office about identification, request method and any record-copy charge before paying. A screening answer is not a criminal-record search. Confirm this arrest is on the Georgia or FBI history. This form cannot be processed if it appears on neither. Do not check the agency's history boxes yourself.

Where to submit first

Submit the complete official form to the arresting law enforcement agency named in Section One, not directly to GCIC and not to a court. Confirm that agency's records-unit mailing address, hours, delivery method and charge. No agency address or contact response has been invented in this packet. Keep a copy and proof of the date the agency received it.

What the agency and prosecutor do

The arresting agency completes Section Two and forwards the entire form to the prosecutor. The prosecutor completes Section Three and decides the action. Section 35-3-37(n)(2) provides a 90-day prosecutor review period and a presumption of no objection after nonresponse. Track actual receipt dates and ask the agency/prosecutor for the status; do not turn elapsed time into a fabricated signature, approval or completed application.

Disposition document branch

The disposition is not reported on the Georgia history. The extra acquisition checklist is included. Attach actual official documentation of the disposition; neither that checklist nor this generated PDF is the missing official document. If documents are unavailable, stop and ask the agency/prosecutor about the source's exception process. Only the prosecutor may supply the explanation or exception in Prosecutor Comments.

Fees and inability to pay

The arresting agency may charge a processing fee of no more than \$50 under the official instructions. Its actual charge must be confirmed; do not assume it is \$50. The separate \$25 GCIC fee applies only when an approved complete application is forwarded to GCIC. It does not apply when the prosecutor enters the restriction directly in CCH. No statutory fee waiver or waiver form for these agency charges is established by this source set. You reported difficulty paying. Ask the agency whether it offers reduced or no-cost processing before submitting payment, and ask a local record-restriction clinic about assistance. No waiver has been granted. A product charge or sponsorship is separate from an agency charge.

After the prosecutor responds

SYNTHETIC EXAMPLE - NOT FOR SUBMISSION

After approval: distinguish the two paths

If the prosecutor approves and enters the restriction in the GCIC CCH interface, do not send an application or \$25 fee to GCIC. Ask for completion confirmation and keep it. If the prosecutor approves but cannot enter it in CCH, follow the agency's directions to forward the actual completed, approved form to GCIC. Do not mail this unsigned initial application as if Sections Two and Three were approved.

Approved-paper forwarding only

After actual approval and the agency's forwarding direction, send the complete approved form with a \$25 money order or certified check payable to Georgia Bureau of Investigation to: Georgia Crime Information Center, Record Restrictions, P.O. Box 370808, Decatur, GA 30037-0808. Confirm current instructions before mailing. Incomplete or unpaid applications are returned. Do not pay by inserting invented payment details in the GBI Use Only box.

Do not forward a denial or research return

If denied, or returned for further research, do not forward to GCIC. Keep the response and its receipt date. Get prompt legal help rather than use this packet as an appeal. Georgia.gov tells applicants to seek judicial review within 30 days of denial; treat that as an urgent outside limit for obtaining advice, not a guarantee of the applicable filing deadline. A civil action, service on respondents or a contested hearing is outside this initial self-help packet.

Check completion and keep copies

For complete paper requests, Georgia.gov describes processing as typically two to three weeks; this is not a guarantee. GCIC sends a letter to the street address in Section One when it applies the restriction. Keep your submitted application, disposition records, proof of receipt, approval, payment proof when applicable, and the completion letter. Obtain an updated history and check the specific arrest cycle. Missing confirmation is not proof that the record is restricted.

Limits and further help

Restriction limits access for non-criminal-justice purposes; it is not record destruction or separate court sealing. Local sources and private databases may retain information. It does not settle federal or immigration disclosure duties. Restriction does not remove employment or office disqualifications that apply under O.C.G.A. 42-8-63.1; see 35-3-37(u). This does not mean every job is barred or every employer may access the record. Stop for immigration consequences, a disputed outcome, a disqualifying same-incident plea, a statutory exclusion, a denial or a request for court enforcement. The Georgia Judicial Council record-restrictions page links to legal help and clinics. It is not a promise of representation.

Disposition-document acquisition

SYNTHETIC EXAMPLE - NOT FOR SUBMISSION

This is NOT your official disposition

This page is an acquisition checklist. It does not certify a disposition, replace a clerk's document or prove that any attachment is enclosed. Keep it with your instructions, not as a substitute exhibit.

What to obtain

Ask the clerk of the court that handled the case for official documentation of the final disposition for every charge in this arrest. For a case closed without referral, ask the arresting agency which official closing record the prosecutor requires. Give the clerk/records office your name, arrest date, charges and actual case/citation number if known. Ask about identity requirements, delivery method and copy/certification charges. Do not invent a case number or a court.

Check the actual document

Compare the name, arrest date and charge list with Section One and verify the outcome and dates. Your stated document status is needed: obtain and attach the real document before submitting. A document held elsewhere is not automatically included in this PDF. Keep your own copy.

When no official record can be obtained

Do not write No Further Action Anticipated or another exception in the prosecutor's area. Ask the agency/prosecutor to address the problem. The source requires a disposition on file, official documentation, or the prosecutor's request for exception. This packet does not supply an exception request or substitute disposition.